

STATE OF NEW YORK

6450--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 5, 2025

Introduced by M. of A. BAILEY, DeSTEFANO, BOLOGNA -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to the retirement of county 911 operators

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 a new section 89-z to read as follows:

3 § 89-z. Optional twenty-five year retirement plan for county police
4 communications operators, police communications operator supervisors,
5 assistant bureau directors (police 911 communications) and bureau direc-
6 tors (police 911 communications). a. Any member who is a county police
7 communications operator, police communications operator supervisor,
8 assistant bureau director (police 911 communications) or bureau director
9 (police 911 communications) in an electing county, shall be eligible to
10 retire pursuant to the provisions of this section. Such eligibility
11 shall be an alternative to the eligibility provisions available under
12 any other plan of this article to which such member is subject. The
13 comptroller shall have the authority to include positions herein that
14 comprehend the same duties and responsibilities, but are named differ-
15 ently.

16 b. Such member shall be entitled to retire upon the completion of
17 twenty-five years of total creditable service by filing an application
18 therefor in the manner provided for in section seventy of this article.

19 c. Upon completion of twenty-five years of such service and upon
20 retirement, each such member shall receive a pension which, together
21 with an annuity which shall be the actuarial equivalent of such member's
22 accumulated contributions at the time of retirement and an additional

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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pension which is the actuarial equivalent of the reserved-for-increased-take-home-pay to which such member may then be entitled shall be sufficient to provide such member with a retirement allowance equal to one-half of their final average salary.

d. As used in this section "creditable service" shall include any and all services performed as a county police communications operator, police communications operator supervisor, assistant bureau director (police 911 communications) and bureau director (police 911 communications).

e. Credit for service as a member or officer of the state police or as a paid firefighter, police officer or officer of any organized fire department or police force or department of any county, city, village, town, fire district or police district, or as a criminal investigator in the office of a district attorney, or as a probation assistant in a county probation department, shall also be deemed to be creditable service and shall be included in computing years of total service for retirement pursuant to this section.

f. The chief executive officer in each county shall certify to the comptroller, periodically and at such intervals of time as may be required and in such fashion as may be prescribed, the identity of the eligible police communications operators, police communications operator supervisors, assistant bureau directors (police 911 communications) and bureau directors (police 911 communications) in such chief executive officer's employ.

g. A member contributing on the basis of this section at the time of retirement shall retire after the completion of twenty-five years of total creditable service. Application therefor may be filed in a manner similar to that provided in section seventy of this article. Upon completion of twenty-five years of such service and upon retirement, each such member shall receive a pension which, together with an annuity which shall be the actuarial equivalent of their accumulated contributions at the time of retirement and an additional pension which is the actuarial equivalent of the reserved-for-increased-take-home-pay to which such member may then be entitled, shall be sufficient to provide such member with a retirement allowance equal to one-half of their final average salary.

h. In computing the twenty-five years of total service of a member pursuant to this section full credit shall be given and full allowance shall be made for service of such member in time of war after World War I as defined in section two of this chapter, provided such member at the time of their entrance into the armed forces was in the service of the county of their employer that makes the election provided for herein.

i. Nothing herein shall be construed to prevent a member, who does not retire pursuant to the provisions of this section, from utilizing service which is creditable service pursuant to the provisions of this section for service credit pursuant to the provisions of any other plan of this article to which such member is subject.

j. 1. Each county that elects pursuant to the provisions of this subdivision shall pay the cost attributable therefor.

2. The benefits of this section shall be available only to those members defined in subdivision a of this section whose employer elects to provide such benefits by adopting a resolution to such effect and filing a certified copy thereof with the comptroller. Such resolution shall be accompanied by the affidavit of the chief executive officer of the county that the county has received an estimate from the retirement system of the cost of the benefit provided by this section.

k. The provisions of this section shall be controlling notwithstanding any other provision in this article to the contrary.

§ 2. Subdivision a of section 445 of the retirement and social security law, as amended by section 2 of part TT of chapter 55 of the laws of 2025, is amended to read as follows:

a. No member of a retirement system who is subject to the provisions of this article shall retire without regard to age, exclusive of retirement for disability, unless they are a police officer, an investigator member of the New York city employees' retirement system, firefighter, correction officer, a qualifying member as defined in section eighty-nine-t, as added by chapter six hundred fifty-seven of the laws of nineteen hundred ninety-eight, of this chapter, sanitation worker, a special officer (including persons employed by the city of New York in the title urban park ranger or associate urban park ranger), school safety agent, campus peace officer or a taxi and limousine commission inspector member of the New York city employees' retirement system or the New York city board of education retirement system, a dispatcher member of the New York city employees' retirement system, a police communications member of the New York city employees' retirement system, an EMT member of the New York city employees' retirement system, a deputy sheriff member of the New York city employees' retirement system, a correction officer of the Westchester county correction department as defined in section eighty-nine-e of this chapter or employed in Suffolk county as a peace officer, as defined in section eighty-nine-s, as added by chapter five hundred eighty-eight of the laws of nineteen hundred ninety-seven, of this chapter, employed in Suffolk county as a correction officer, as defined in section eighty-nine-f of this chapter, or employed in Nassau county as a correction officer, uniformed correction division personnel, sheriff, undersheriff or deputy sheriff, as defined in section eighty-nine-g of this chapter, or employed in Nassau county as an ambulance medical technician, an ambulance medical technician/supervisor or a member who performs ambulance medical technician related services, or a police medic, police medic supervisor or a member who performs police medic related services, as defined in section eighty-nine-s, as amended by chapter five hundred seventy-eight of the laws of nineteen hundred ninety-eight, of this chapter, or employed in Nassau county as a peace officer, as defined in section eighty-nine-s, as added by chapter five hundred ninety-five of the laws of nineteen hundred ninety-seven, of this chapter, or employed in Albany county as a sheriff, undersheriff, deputy sheriff, correction officer or identification officer, as defined in section eighty-nine-h of this chapter or is employed in St. Lawrence county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-i of this chapter or is employed in Orleans county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-l of this chapter or is employed in Jefferson county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-j of this chapter or is employed in Onondaga county as a deputy sheriff-jail division competitively appointed or as a correction officer, as defined in section eighty-nine-k of this chapter or is employed in a county which makes an election under subdivision j of section eighty-nine-p of this chapter as a sheriff, undersheriff, deputy sheriff or correction officer as defined in such section eighty-nine-p or is employed in Broome County as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-m of this chapter or is a Monroe county deputy sheriff-court security, or deputy sheriff-jailor as defined in

1 section eighty-nine-n, as added by chapter five hundred ninety-seven of
2 the laws of nineteen hundred ninety-one, of this chapter or is employed
3 in Greene county as a sheriff, undersheriff, deputy sheriff or
4 correction officer, as defined in section eighty-nine-o of this chapter
5 or is a traffic officer with the town of Elmira as defined in section
6 eighty-nine-q of this chapter or is employed by Suffolk county as a park
7 police officer, as defined in section eighty-nine-r of this chapter or
8 is a peace officer employed by a county probation department as defined
9 in section eighty-nine-t, as added by chapter six hundred three of the
10 laws of nineteen hundred ninety-eight, of this chapter or is employed in
11 Rockland county as a deputy sheriff-civil as defined in section eighty-
12 nine-v of this chapter as added by chapter four hundred forty-one of the
13 laws of two thousand one, or is employed in Rockland county as a superi-
14 or correction officer as defined in section eighty-nine-v of this chap-
15 ter as added by chapter five hundred fifty-six of the laws of two thou-
16 sand one or is a paramedic employed by the police department in the town
17 of Tonawanda and retires under the provisions of section eighty-nine-v
18 of this chapter, as added by chapter four hundred seventy-two of the
19 laws of two thousand one, or is a county fire marshal, supervising fire
20 marshal, fire marshal, assistant fire marshal, assistant chief fire
21 marshal, chief fire marshal, division supervising fire marshal or fire
22 marshal trainee employed by the county of Nassau as defined in section
23 eighty-nine-w of this chapter or is employed in Monroe county as a depu-
24 ty sheriff-civil as defined in section eighty-nine-x of this chapter,
25 employed as an emergency medical technician, critical care technician,
26 advanced emergency medical technician, paramedic or supervisor of such
27 titles in a participating Suffolk county fire district as defined in
28 section eighty-nine-ss of this chapter, or is a firefighter apprentice,
29 airport firefighter I, airport firefighter II, airport firefighter III,
30 or training and safety officer employed by the division of military and
31 naval affairs as defined in section eighty-nine-y of this chapter, or is
32 a county police communications operator, police communications operator
33 supervisor, assistant bureau director (police 911 communications) and
34 bureau director (police 911 communications) as defined in section eight-
35 y-nine-z of this chapter and is in a plan which permits immediate
36 retirement upon completion of a specified period of service without
37 regard to age. Except as provided in subdivision c of section four
38 hundred forty-five-a of this article, subdivision c of section four
39 hundred forty-five-b of this article, subdivision c of section four
40 hundred forty-five-c of this article, subdivision c of section four
41 hundred forty-five-d of this article, subdivision c of section four
42 hundred forty-five-e of this article, subdivision c of section four
43 hundred forty-five-f of this article and subdivision c of section four
44 hundred forty-five-h of this article, a member in such a plan and such
45 an occupation, other than a police officer or investigator member of the
46 New York city employees' retirement system or a firefighter, shall not
47 be permitted to retire prior to the completion of twenty-five years of
48 credited service; provided, however, if such a member in such an occupa-
49 tion is in a plan which permits retirement upon completion of twenty
50 years of service regardless of age, they may retire upon completion of
51 twenty years of credited service and prior to the completion of twenty-
52 five years of service, but in such event the benefit provided from funds
53 other than those based on such a member's own contributions shall not
54 exceed two per centum of final average salary per each year of credited
55 service.

§ 3. Section 603 of the retirement and social security law is amended by adding a new subdivision x to read as follows:

x. The service retirement benefit specified in section six hundred four of this article shall be payable to members with twenty-five years of creditable service, without regard to age, who are employed as a county police communications operator, police communications operator supervisor, assistant bureau director (police 911 communications) and bureau director (police 911 communications) as defined in section eighty-nine-z of this chapter if: (i) such members have met the minimum service requirements upon retirement; and (ii) in the case of a member subject to the provisions of article fourteen of this chapter, such member files an election therefor which provides that they will be subject to the provisions of this article and to none of the provisions of such article fourteen. Such election, which shall be irrevocable, shall be in writing, duly executed and shall be filed with the comptroller within one year of the effective date of this subdivision or within one year after entering the employment with such county upon which eligibility is based, whichever comes later. For the purposes of this subdivision, the term "creditable service" shall have the meaning as so defined in both sections eighty-nine-z and six hundred one of this chapter.

§ 4. Section 604 of the retirement and social security law is amended by adding a new subdivision x to read as follows:

x. The early service retirement benefit for a member who is employed as a county police communications operator, police communications operator supervisor, assistant bureau director (police 911 communications) and bureau director (police 911 communications) as defined in section eighty-nine-z of this chapter shall be a pension equal to one-fiftieth of final average salary times years of credited service at the completion of twenty-five years of service as such police communications operator, police communications operator supervisor, assistant bureau director (police 911 communications) and bureau director (police 911 communications), but not exceeding one-half of their final average salary; for service beyond twenty-five years the benefits shall increase by one-sixtieth of final average salary for each year of additional service credit provided, however, that the total allowance payable pursuant to this section shall not exceed three-fourths of such member's final average salary.

§ 5. All past service costs incurred with implementing the provisions of this act shall be borne by any county that elects to provide the benefits provided by this act.

§ 6. This act shall take effect the first of January next succeeding the date on which it shall have become a law.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow counties to elect to provide police communications operators and similar titles, the option to retire with twenty-five years of service credit. The benefit would be one-half of final average salary (FAS) plus, for Tiers 3 through 6 only, one-sixtieth of FAS for each additional year of creditable service, not to exceed three-fourths (75%) of FAS. Additionally, members covered under Article 14 would be permitted one year to make an irrevocable election to switch to the twenty-five-year plan benefit.

We estimate that the annual contribution required of an electing employer will increase by 7% of the salary paid to the affected members. Annual costs will vary as the billing rates and salary of the affected members change.

In addition, there will be an immediate past service cost borne by each electing employer as a one-time payment. This cost will vary by employer but is expected to average approximately 30% of the salary paid to the affected members.

Further, we anticipate additional administrative costs to implement the provisions of this legislation.

The exact number of current members as well as future members who could be affected by this legislation cannot be readily determined. Prior to electing to provide these benefits, an employer would be required to submit a roster of eligible members to the New York State and Local Retirement System. This roster would be used to determine an exact cost to the individual employer electing to provide these benefits.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 11, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-56. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.